

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4132

By: Fetgatter

AS INTRODUCED

An Act relating to technology; providing liability protections for counties and municipalities that adopt recognized cybersecurity frameworks; providing requirements for safe harbor qualification; permitting counties and municipalities to submit summary information to State Auditor and Inspector; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1000 of Title 75A, unless there is created a duplication in numbering, reads as follows:

A. No county or municipality shall be held liable in a civil lawsuit for damages resulting from a data breach or cybersecurity incident if, at the time of the breach, the county or municipality had adopted and reasonably conformed its practices to one or more of the following frameworks:

1 1. The National Institute of Standards and Technology (NIST)
2 Cybersecurity Framework;
3 2. The Center for Internet Security (CIS) Critical Security
4 Controls; or
5 3. The ISO/IEC 27000 series of information security standards.

6 B. To qualify for safe harbor under this section, a county or
7 municipality shall:

8 1. Complete an annual self-certification by the county or
9 municipality information technology officer or designee to the
10 governing body of the county or municipality affirming conformity to
11 the selected framework;

12 2. Maintain documentation and records demonstrating
13 implementation of cybersecurity practices, including, but not
14 limited to, policies, asset inventories, multifactor authentication,
15 patching, backups, employee training, incident response, business
16 continuity, and disaster recovery plans; and

17 3. Obtain an independent review by a qualified external
18 assessor not less than once every three (3) years, with the
19 resulting report to be retained by the county and deemed
20 confidential pursuant to the Oklahoma Open Records Act.

21 C. A county or municipality may voluntarily submit summary
22 information regarding its self-certification or independent review
23 to the State Auditor and Inspector for the purpose of statewide
24 benchmarking and education.

SECTION 2. This act shall become effective November 1, 2026.

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